

- 9.6. Unless otherwise agreed between the parties, if the Contractor takes any goods back, it does not mean that the Contractor terminates the contract. If sold goods, still owned by the Contractor, are taken back, the Contractor shall retain the right to claim for damages on account of failure to fulfil a contractual obligation.
- 9.7. Till the reservation of the title expires, the Buyer shall be considered as the steward of the goods sold with the reservation of the title.
- 9.8. The costs incurred on account of the enforcement of the Contractor's title shall be regarded as the Buyer's costs.

10. Concluding provisions

- 10.1. These trading terms and conditions were executed in Czech, Slovak, English and German. Should any differences arise among individual versions, the Czech language version shall prevail.
- 10.2. The relations between the parties shall be governed by the Czech legal order. Any legal relations not regulated in the contract or these terms and conditions expressly shall be governed by Act 513/1991 Coll., Commercial Code. In cases of contracts with an international element, the United Nations Convention on Contracts for the International Purchase of Goods (Vienna, 1980) shall be applied, which is part of the Czech legal order; the Convention according to the clause in front of the semicolon shall be applied even if the Buyer does not have a registered office in the country which is a party to the Convention.
- 10.3. If any of the provisions of these trading terms and conditions is or becomes ineffective, other provisions of these terms and conditions shall remain in effect. The parties undertake to supersede the ineffective provision of these terms and conditions by another effective provision which shall correspond best to the content and sense of the original ineffective provision. Any invalidity of individual provisions of the General Trading Terms and Conditions shall not affect the validity of other provisions.
- 10.4. If the content of a concluded individual contract is inconsistent with the provisions of these General Trading Terms and Conditions, the individual contract shall prevail.
- 10.5. All disputes in relation to the contract concluded between the parties or these General Trading Terms and Conditions shall be settled definitely in proceedings before the Arbitration Court at the Economic Chamber of the Czech Republic and Agrarian Chamber of the Czech Republic according to its Rules and Regulations by a tribunal consisting of three arbitrators. By the provision of the previous sentence, the right of the parties to sue for recovery of their claims by a petition filed at the Municipal Court in Brno or Regional Court in Brno, depending on the subject-matter jurisdiction of the court with respect to a specific dispute, is not to be excluded.
- 10.6. The Buyer expresses unreserved consent to these General Trading Terms and Conditions and confirms the fact by its signature.

In Vyškov on.....

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COREX CZECH s.r.o.

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Company:
Co. Reg. No.:
Based in: